

COMMITTEE ON TRANSPORTATION & INFRASTRUCTURE
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1456
(Reference to Senate engrossed bill)

1 Strike everything after the enacting clause and insert:

2 "Section 1. Section 28-5101.01, Arizona Revised Statutes, is
3 amended to read:

4 28-5101.01. Authorized third party driver license providers:
5 requirements

6 A. Except as provided in section 28-5101.03, an authorized third
7 party driver license provider must perform both of the following:

- 8 1. Driver license skills and written testing.
9 2. Driver license processing.

10 B. A person who is a third party driver license provider authorized
11 pursuant to this section may also be authorized pursuant to this article
12 to perform certain title and registration functions.

13 C. A person who applies for authorization pursuant to this section
14 shall submit with the application all of the following:

15 1. A bond in a form to be approved by the director and in an amount
16 of at least \$300,000 for an initial application for authorization pursuant
17 to this section and an additional \$100,000 for each additional location
18 providing driver license functions prescribed in subsection A of this
19 section, except that if the authorized third party is also authorized
20 pursuant to this article to perform certain title and registration
21 functions at the same location only a single \$100,000 bond is required for
22 that location. The total bond amount required by this paragraph shall not
23 exceed \$1,000,000. The bond requirements of this paragraph do not apply
24 to ~~government~~ entities prescribed in section 28-5104, subsection E,
25 paragraphs 1, 2, 3, 5, ~~and~~ 11 AND 12.

26 2. Documentation that the applicant satisfies all of the following:

27 (a) Has been an authorized third party pursuant to this chapter for
28 at least the immediately preceding three years.

29 (b) Has conducted an average of at least one thousand retention
30 transactions per month for the previous calendar year.

31 (c) Is in good standing with the department.

32 (d) Has a facility plan for each location that shows adequate space
33 and equipment necessary to perform the functions prescribed in subsection
34 A of this section.

35 3. Documentation that the applicant has during business hours at
36 least one certified processor qualified to perform at a minimum all of the
37 following at each location:

- 38 (a) Fraudulent document recognition.
39 (b) Ignition interlock requirements.

1 (c) Driver license reinstatements.

2 D. A third party driver license provider authorized pursuant to
3 this section must comply with all quality control requirements prescribed
4 by the department.

5 E. A third party driver license provider authorized pursuant to
6 subsection A of this section may perform administrative functions or
7 testing functions or both administrative functions and testing functions
8 for the issuance and renewal of commercial driver licenses as authorized
9 by the director and pursuant to federal law."

10 Amend title to conform

And, as so amended, it do pass

LEO BIASIUCCI
CHAIRMAN

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